

GUIDE FOR RECEIVING UNEMPLOYMENT INSURANCE BENEFITS

This guide explains your rights and responsibilities when filing for and receiving Unemployment Insurance benefits in the state of Tennessee. Failure to follow instructions contained in this document may result in a delay or denial of benefits.

The Tennessee Department of Labor and Workforce Development (TDLWD) is committed to principles of equal opportunity, equal access, and affirmative action. Auxiliary aids and services are available upon request to individuals with disabilities. (For Tennessee Relay Service, call 711.)

Pursuant to C.F.R. 603.11, confidential Unemployment Compensation information pertaining to your claim for benefits may be requested and utilized for other governmental purposes, including, but not limited to, verification of eligibility under other government programs.

YOUR RESPONSIBILITIES

Complete your Weekly Certification

- a. In order to receive unemployment insurance benefit payments if your claim is approved, **you must log in to your claimant e-Services account and complete your weekly certification each week you are unemployed.** You may begin completing your weekly certification the first Sunday after the week you filed your claim.

For more information on the weekly certification requirement, please see section IV below.

- b. Unless this requirement is waived, **you are required to complete a minimum combination of four job searches and/or work search activities (interviews, job fairs, etc.) each week and report this information on your weekly certification.**

For additional job search resources, please visit our workforce services site on www.jobs4tn.gov. For more information on approved activities, please visit your local American Job Center.

- c. If you work and earn wages during a week for which you are certifying, **you must report those earnings on your certification even if you have not yet been paid.** If you're unsure what your exact earnings were, simply multiply the number of hours you worked by your hourly rate of pay.
- d. If you begin working and earning more than your weekly benefit amount, you must stop filing your weekly certification and allow your claim to close.

Respond in a Timely Manner to TDLWD Requests

- e. To determine your eligibility, you may be asked to provide documentation or answer one or more questionnaires regarding your claim. **These requests are time-sensitive and must be completed by the deadline specified.** Failure to respond to a request in a timely manner may result in a delay or denial of benefits. You may respond to all agency requests via your Claimant e-Services account on Jobs4TN.gov.

Check your Communication Regularly

- f. You must regularly check for important messages about your claim. Once the TDLWD determines whether you are eligible to receive benefits, you will receive a written decision letter outlining all the findings and outcomes.
- g. Please note: if you selected to receive communication from TDLWD via postal mail, you will still receive an electronic copy of all correspondence to your claimant e-Services account. Electronic communication is received much sooner than postal communication. The agency recommends checking your e-Services account regularly while waiting for a decision on your claim.

Maintain your Online Account and Contact Information

- h. You must keep your home and mailing address, phone number, and contact email address up to date within your e-Services account. Failure to do so may result in a delay or loss of benefits.
- i. Always keep your online account secure by using a password and recovery answers that only YOU know.

I. WHAT IS UNEMPLOYMENT INSURANCE?

Unemployment Insurance is designed to provide weekly benefits to individuals who have lost their jobs due to no fault of their own and who are able, available, and actively seeking re-employment. The program is funded by employers who pay into Tennessee's Unemployment Insurance Trust Fund. Eligibility to receive Unemployment Insurance benefits is based on Tennessee's Employment Security Law (see T.C.A. Title 50, Chapter 7).

II. AM I ELIGIBLE?

Eligibility for Unemployment Insurance is based upon two categories: monetary and non-monetary eligibility.

- a. Monetary Eligibility: whether you're eligible to draw a weekly and maximum benefit amount.

Your monetary eligibility is calculated using insured wages you earned during your base period. Tennessee uses the first 4 of the last 5 completed calendar quarters when determining an individual's base period. Currently, the maximum weekly benefit amount in Tennessee is \$325.00, and the maximum number of eligible weeks is 12 within a 52-week benefit year.

After your claim has been filed, **you will immediately receive a Monetary Determination letter outlining your eligibility.**

- b. Non-Monetary Eligibility: whether you meet federal and state requirements to draw weekly benefits.

Non-monetary eligibility can be based on several things, mainly: your separation from your most recent job, your able and available status, and other categories such as whether you're already receiving deductible pay/benefit types.

After your claim has been filed, if you are found to be monetarily eligible an agent will begin reviewing your claim to see if you meet the eligibility requirements. **Once an eligibility decision has been made on your claim, you will receive a Non-Monetary Determination letter outlining the agency's findings and outcome.**

III. WHAT IS THE WEEKLY CERTIFICATION?

One of the most important responsibilities you have as a claimant is to complete a weekly certification for each week you are unemployed. **If your claim is approved and you do not complete your certification for the week(s) you were unemployed, you will not be eligible to receive payment for that period of unemployment.**

- a. Why do I have to certify each week?

Your weekly certification is how you tell the agency that you were unemployed and that you either did or did not meet the eligibility requirements to receive a payment for that week. This includes reporting earnings, and your four required job searches or work search activities (unless you are waived).

- b. Where do I complete my certification?

You can complete your weekly certifications online through your Claimant e-Services account on Jobs4TN.gov.

- c. When do I certify each week?

Certifications document your work history for the **previous week (Sunday through Saturday)**. You can complete your certification each week beginning on Sunday. It is recommended that

claimants file as soon as they can each week, however, you can complete your certification any day of the week.

d. What if I don't certify?

If you miss more than two consecutive certifications, your claim will be automatically closed, and you will not be eligible to certify for those weeks missed.

IV. WHAT IF I DISAGREE WITH A DECISION ON MY CLAIM?

You have the right to dispute both monetary and non-monetary eligibility determinations made on your claim. Please note these disputes must be filed timely by you, the claimant.

i. NON-MONETARY DETERMINATIONS

a. Appeal Rights

If your claim is denied, you have the right to appeal the non-monetary determination within 15 calendar days of the mail date on your decision letter. If state offices are closed on the final day, the next business day will be the deadline. Late appeals will be allowed only if you can show, in a hearing, that you had good cause. You may be represented by an attorney or assisted by any other representative you choose. If you cannot afford an attorney, free/low-cost legal assistance may be available through your local legal services organization or bar association. The agency cannot provide an attorney for you. **For more information on filing an appeal, please review your Non-monetary Determination letter.**

If you choose to appeal a decision on your claim, you must continue to file your weekly certification in order to be eligible for payment retroactively if your appeal decision falls in your favor.

Your employer may also appeal any decision made on your claim for which they are considered an interested party. The department will notify you through your preferred communication method if you are scheduled to attend an appeal hearing. Make sure to check your communication regularly to ensure you are aware of any upcoming appeals.

ii. MONETARY DETERMINATIONS

a. Out-of-State Wages

Wages earned through employment out-of-state are often located in the state in which they were earned and will not immediately appear in your base period. If you reported that you worked out-of-state on your claim application, then a request has been sent to the state(s) you selected. If wages are located, you will be notified concerning your potential eligibility.

b. Military or Federal Employment

Wages earned from the federal government (federal civilian or military) will not immediately appear in your base period. If you reported your military or federal employment on your claim application, then a request has already been sent for your wages. You will be sent an additional monetary determination letter once those wages are received. Please note: you may be asked to provide additional proof of federal earnings.

c. Wage Protest Rights

If an insured employer and/or wages are missing from your base period, or if the wages showing in your base period appear incorrect, you have the right to file a Wage Protest of your Monetary Determination within 90 days of the determination mail date displayed on this letter. You can submit a Wage Protest online via your Claimant e-Services account on Jobs4TN.gov.

IMPORTANT: failure to notify us of missing or incorrect wages may result in an underpayment, overpayment, or possible fraud investigation. For more information on filing a wage protest, please review your Monetary Determination Letter.

Please keep in mind that unemployment insurance only uses wages earned through insured work, which is a job where the employer pays unemployment taxes. This means that wages earned through self-employment and/or contract employment (1099 status) will not be present in the base period as those wages are not insured via the state's unemployment tax. In addition to this, some non-profit and religious institutions are also considered uninsured as those entities are exempt from the state's unemployment tax.

d. Notice of Health Insurance

Please note that you may be entitled to have the state of Tennessee pay the premium for your ongoing health insurance. For more information, contact your local Department of Human Services.

V. HOW WILL I RECEIVE PAYMENT?

There are two methods by which you can receive your benefit payments. You can choose to have your payment sent to a state-issued debit card or directly deposited into a bank account. You will select your preferred payment method during the online application process. You may change your payment method at any time via your Claimant e-Services account on Job4TN.gov.

a. Way2Go Debit Card

You may choose to receive your benefits through a state-issued debit card. Your Way2Go Card will be sent via postal mail to the mailing address you have listed on your e-Services account. We advise that you carefully review any mail received after filing your claim as the card will arrive in a plain, windowed envelope and may be mistaken for other correspondence.

Once you activate your Way2Go debit card, it is valid for 3 years. **Do not dispose of your card until after it expires and has been replaced. If you need to resume receiving benefits at a later date, the agency will send any payments to that valid card.**

For questions, concerns, or assistance with activating your card, please contact Conduent customer service at 855-462-5887

b. Direct Deposit

You may choose to have the agency directly deposit your benefits into a bank account. Please note, we do not accept some pre-paid card carriers as direct deposit accounts.

VI. ARE BENEFITS CONSIDERED TAXABLE INCOME?

Yes, unemployment insurance benefits are considered taxable income, and information contained in your Unemployment Insurance claim file may be released to other government agencies as required by law.

a. Deduction Preference

You have the option to have federal taxes deducted from your benefit amount each week (10%). You may change your deduction preference at any time through your Claimant e-Services account on Job4TN.gov.

b. Form 1099-G

If you received Unemployment Insurance benefits during a given tax year, you will be issued an IRS Form 1099-G showing your total payment amount for tax filing purposes. Your 1099-G will be available for download under your e-Services account around the end of January each year.

Tennessee WILL NOT mail a 1099-G.

VII. WHAT IF I BEGIN WORKING?

Part of your responsibility is to report any earnings on your weekly certification, as well as any new employment separations you have had since you last filed.

a. Fraud and Earnings Crossmatch

As noted previously, if you work and earn wages during a week for which you are certifying, you must report those earnings on your certification, even if you have not yet been paid.

If you have any earnings, your employer will report them to the agency, and they will be compared to what you reported on your certification. This crossmatch will detect any differences with your reported earnings. Failure to report your earnings accurately may result in fraud investigation, potential overpayment, and penalties up to and including criminal prosecution.

b. New Hire Reporting

Employers are required to report new hire information directly to the state, which means the agency will be made aware if/when you begin working again. Along with any earnings you have made, you are also required to report any new job separations you have had during a week for which you are certifying. Failure to do so may result in fraud investigation, potential overpayment, and penalties up to and including criminal prosecution.

If you begin working and earning more than your weekly benefit amount, you must stop filing your weekly certification and allow your claim to close.

IMPORTANT NOTICE ABOUT UNEMPLOYMENT FRAUD THAT YOU SHOULD KNOW

Reporting false information in order to receive unemployment benefits could result in a determination of fraud. If you receive any benefit payments that are later determined to be disqualified, those benefit payments will be determined overpaid. All overpayments of unemployment benefits must be repaid in full. We will automatically recoup any overpayment balances through the offset of future unemployment benefit payments. In addition, TDLWD reserves the right to assess penalties, garnish your federal income tax refunds, suspend recreational licenses, and other legal collection actions as prescribed by law. If your overpayment is found to be the result of fraud, you will be disqualified from receiving unemployment benefits from the point the fraudulent act was committed to the end of that claim's benefit year. In addition, you will be disqualified from receiving unemployment benefits for up to 52 weeks from the date the fraud determination was made.